



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Charles W. Bloom, AICP, Planning and Development Director

Subject: PLTA-24-4: An ordinance amending Chapter 10.82, Motor-assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, authorizing dockless vehicle companies to conduct business in the city using the city's formal procurement process, making a conforming amendment and repealing obsolete provisions.

Date: March 24, 2025

Background:

The item for consideration is an amendment to municipal code and is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: March 24, 2025
- Finance Committee: April 8, 2025
- Second reading: April 14, 2025
- Finance Committee: April 23, 2025
- Third and final reading: April 21, 2025

This ordinance establishes a formal process for selecting a single dockless vehicle (electric scooters) company to operate in Cheyenne through a Request for Proposal (RFP) system, aiming to improve communication with the provider and ensure market viability. Key RFP criteria include fleet size, operations and maintenance plans, safety measures, data sharing, community engagement, compliance, and potential revenue to the City.

The new system addresses challenges from the current model, where unlimited providers make City coordination difficult and market fragmentation prevents operators from offsetting costs. Additionally, the current model only requires a one-time \$200 annual license fee per provider and a \$5 annual fee per dockless vehicle.

Currently, dockless vehicle providers operate on a month-to-month license issued by the City Clerk's Office, with only one provider actively serving the City. They and other providers are awaiting the implementation of the RFP process and intend to submit proposals when it's posted. The RFP is set to be posted upon ordinance approval, with a new provider expected to be in place by June of this year.

Attachment:

1. Ordinance

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING CHAPTER 10.82, MOTOR-ASSISTED SCOOTERS, ELECTRIC BICYCLES, AND BICYCLES EQUIPPED WITH GPS OF TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AUTHORIZING DOCKLESS VEHICLE COMPANIES TO CONDUCT BUSINESS IN THE CITY USING THE CITY'S FORMAL PROCUREMENT PROCESS, MAKING A CONFORMING AMENDMENT AND REPEALING OBSOLETE PROVISIONS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Sections 10.82.090 through 10.82.130, of Chapter 10.82, Motor-Assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, are hereby created to read:

10.82.090 - Findings and Purpose

- A. Certain companies around the nation provide dockless vehicles that can be ridden by patrons for payment of a fee.
- B. The regulation of dockless vehicles is important to promote safe use, limit conflict with other users and to efficiently manage the use of the city's right-of-way and multi-use paths.
- C. The City of Cheyenne recognizes the growing interest and demand for alternative transportation options, including dockless vehicles such as electric bicycles and scooters.
- D. The city aims to provide safe, reliable and efficient transportation alternatives for its residents and visitors and seeks to implement a structured and transparent process to select a qualified company to provide dockless vehicle services through a Request for Proposal (RFP) process.

10.82.100 - Definitions.

- A. As used in this chapter:
 - 1. "City" means the City of Cheyenne, Wyoming;
 - 2. "Dockless vehicle" means any bicycle, scooter or other personal transportation device that does not require a fixed docking station for parking;
 - 3. "Operator" means a person selected through the RFP process to provide dockless vehicle services in the city of Cheyenne, which person has a current operating agreement with the city;"

4. "Person" includes an individual, partnership, corporation, joint stock company or any other association or entity, public or private; and
5. "Request for Proposal" or "RFP" means a competitive process that invites persons engaged in the dockless vehicles business to participate in the city's formal procurement process and submit proposals for providing dockless vehicle services.

10.82.110 - Dockless vehicles; Request for Proposal process.

- A. When appropriate, the city shall issue an RFP to invite proposals from any person interested in providing dockless vehicle services. The RFP shall outline the requirements, evaluation criteria, scope of services and other conditions for providing the service. Persons responding to the RFP shall submit a comprehensive proposal detailing their ability to meet the requirements set forth in the RFP, which requirements shall include those specified in this subsection. Any person who fails to submit a proposal or who does not follow the requirements of the Request for Proposal shall not be considered. The requirements of the RFP shall include:
 1. Fleet size and vehicle specifications;
 2. Operations and maintenance plans, including a description of how the proposed operator will respond:
 - a. To complaints of improperly parked or abandoned dockless vehicles; and
 - b. Reported safety or operational concerns of any deployed dockless vehicle;
 3. Safety measures and rider education;
 4. Data sharing and reporting capabilities;
 5. Community engagement strategies;
 6. Compliance with local, state, and federal regulations;
 7. Programs for reduced rates; and
 8. Any other requirement deemed appropriate by the Mayor or his or her designee.
- B. RFP proposals shall be evaluated based on criteria established in the RFP, which may include:
 1. Experience and qualifications of the prospective operator;
 2. Quality and sustainability of the dockless vehicles;

3. Robustness of the operations and maintenance plan;
 4. Commitment to safety and rider education;
 5. Ability to provide reliable data and reporting;
 6. Community engagement and responsiveness;
 7. Programs for reduced rates;
 8. Potential revenue to the city to be provided by prospective operator; and
 9. Any other criteria deemed appropriate by the Mayor or his or her designee.
- C. The city shall review and evaluate all proposals received in response to the RFP in accordance with the procedures established in the RFP and the city's formal procurement process. The city may select one (1) or more operators based on the proposals received and on the evaluation criteria of the RFP. The city shall enter into an operating agreement with each selected operator, which agreement shall specify the terms and conditions of providing dockless vehicle services. Nothing in this subsection shall be construed to require the city to select any of the RFP submissions.

10.82.120 - Operator responsibilities; regulations and compliance

- A. Any operators selected through the RFP process shall be responsible for:
1. Complying with all terms and conditions set forth in the operating agreement with the city;
 2. Ensuring the safe and efficient operation of dockless vehicles;
 3. Regularly maintaining and servicing the dockless vehicles;
 4. Providing customer service and addressing any issues or complaints promptly; and
 5. Sharing data with the city as required for monitoring and evaluation purposes.
- B. The city reserves the right to establish additional regulations governing the operation of dockless vehicles and to enforce compliance with all applicable laws and regulations. Failure to comply with applicable laws and regulations may result in penalties, including but not limited to fines, suspension or revocation of the operator's authority to provide dockless vehicle services.

Section 2. That Section 10.80.030, Traffic Ordinances Apply to Persons Riding Bicycles, of Chapter 10.80, Bicycles and Motor-Assisted Scooters, of Title 10, Vehicles and Traffic, is hereby amended to read:

10.80.030 - Traffic ordinances apply to persons riding bicycles, scooters and dockless vehicles.

Every person riding a bicycle, ~~or~~ motor-assisted scooter or dockless vehicle as defined by Section 10.82.100 of the city code, upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this title, except as to special regulations in this chapter and except as to those provisions of this title which by their nature can have no application.

Section 3. That Sections 10.82.010 through 10.82.080, of Chapter 10.82, Motor-Assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, are hereby repealed.

~~10.82.010—Effect of regulations.~~

~~A. It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.~~

~~B. These regulations applicable to motor-assisted scooters, electric bicycles, and bicycles equipped with GPS shall apply whenever a motor-assisted scooter, electric bicycle, or bicycle equipped with GPS is operated within the jurisdiction of the city of Cheyenne subject to those exceptions stated herein.~~

~~10.82.020—Definitions and exclusions.~~

~~As used in this chapter, the following words and phrases and any variations thereof, shall have the following meaning:~~

~~"Bicycle equipped with GPS" means a device that a person may ride and that is propelled by human power and has two tandem wheels, at least one of which is more than fourteen (14) inches in diameter, which has a global positioning system (GPS) to determine the geographic location of the bicycle.~~

~~"Director" means the director of the compliance department and/or the city clerk, as applicable, designated to enforce and administer this chapter and includes representatives, agents, or department employees designated by the director.~~

~~"Dockless vehicle" means a motor-assisted scooter, an electric bicycle, or a bicycle equipped with GPS, owned by a non-governmental entity, that is available for use for a fee.~~

~~"Electric bicycle" means a bicycle as defined in Wyo. Stat. Section 31-1-101(a)(xxxiv).~~

~~"Fleet manager" means the person responsible for the daily operations of a dockless vehicle service, who must be based in the city.~~

~~"Geofencing" means the use of a virtual perimeter in which the use of a dockless vehicle is either restricted or the speed of the dockless vehicle is reduced when in use.~~

~~"Motor-assisted scooter" means a self-propelled device, not including a pocket bike or mini-motorbike, with:~~

- ~~1. At least two wheels in contact with the ground during operation;~~
- ~~2. A braking system capable of stopping the device under typical operating conditions;~~
- ~~3. A gas or electric motor not exceeding forty (40) cubic centimeters;~~
- ~~4. A deck designed to allow a person to stand or sit while operating the device; and~~
- ~~5. The ability to be propelled by human power alone.~~

~~"License" means the business license issued by the city to a person which authorizes the operation of a service providing dockless vehicles for compensation.~~

~~"License holder" means the person who owns the operation if a sole proprietorship, or the person who has been designated as managing the operation if any other entity, of a service providing dockless vehicles for compensation.~~

~~"Person" means an individual, partnership, corporation, company, association, or other legal entity.~~

~~This chapter does not apply to vehicles as defined by Wyoming Statutes, to include:~~

- ~~1. Wyo. Stat. Section 31-1-101(a)(xv) [Motor Vehicle]; and~~
- ~~2. Wyo. Stat. Section 31-1-101(a)(xxvi) [Vehicle].~~

~~10.82.030—Dockless vehicle license.~~

~~A. A person must register and obtain a license from the city, and pay any applicable fees, prior to providing a dockless vehicle for any compensation including, but not limited to, any money, thing of value, payment, consideration, donation, gratuity, or profit.~~

~~B. Unless otherwise specified under subsection (F) of this section, to obtain a license, a person must submit an application to the city clerk's office on a form provided by the city clerk's office for that purpose. The application must contain the following, including any additional information and requirements established by the director:~~

- ~~1. The business name, street address, mailing address, e-mail address, and telephone number of the applicant;~~

- ~~2. A non-refundable annual license fee of two hundred dollars (\$200.00);~~
 - ~~3. A non-refundable annual license fee of five dollars (\$5.00) for each dockless vehicle which is to be operated within the city limits of the city of Cheyenne;~~
 - ~~4. The name, telephone number, and e-mail address of the fleet manager. Any change in this information must be reported to the director within twenty-four (24) hours of the change;~~
 - ~~5. A phone number for the public to report improperly parked dockless vehicles and other violations, which must be posted on each dockless vehicle;~~
 - ~~6. The address of the fixed facilities to be used in the operation, if any, and the address of the applicant's headquarters, if different from the address of the fixed facilities;~~
 - ~~7. Documentary evidence from an insurance company indicating that such insurance company has bound itself to provide the applicant with the liability insurance required by this chapter;~~
 - ~~8. Documentary evidence of payment of ad valorem and sales taxes on property within the city, if any, to be used in connection with the operation of the proposed dockless vehicle program;~~
 - ~~9. The number and the types of dockless vehicles to be operated; and~~
 - ~~10. An agreement to indemnify the city.~~
- ~~C. Except as provided in subsection (B)(4) of this section, an applicant or registrant shall notify the director, in the manner prescribed by the director, within ten (10) days of any change in the information contained in the application for a license. If the information reported to the director includes an increase in the number of dockless vehicles, any additional fees due must be submitted to the director simultaneously with the change in information.~~
- ~~D. Unless otherwise specified under subsection (F) of this section, a license expires one year from the date it is issued. An applicant may renew a license following the process in this section.~~
- ~~E. A license is non-transferrable. This regulation should not be construed to impede the continuing use of trade names.~~
- ~~F. Notwithstanding any licensing provision to the contrary imposed under this section or Section 10.82.040 of this chapter, any person seeking to provide a dockless vehicle for any compensation on or after June 1, 2024, may only do so upon receipt of a license issued by the city clerk's office, which license shall only be effective for a term of one (1) month from the time of issuance and shall be subject to the following conditions and requirements:~~

- ~~1. The monthly license authorized under this subsection may be renewed on a monthly basis subject to any additional information and requirements established by the director;~~
- ~~2. A non-refundable monthly license fee of seventeen dollars (\$17.00) shall be submitted by the applicant prior to the issuance or renewal of any license under this subsection;~~
- ~~3. A non-refundable monthly fee of fifty cents (\$0.50) for each dockless vehicle which is to be operated within the city limits of the city of Cheyenne shall be submitted by the applicant prior to the issuance of any license or renewal under this subsection; and~~
- ~~4. The director shall not be required to approve any license application or renewal application submitted under this subsection, regardless of whether the applicant otherwise qualifies for a license or to have a license renewed, if the approval would be contrary to the public interest. Any application that is denied under this paragraph shall not be entitled to administrative review by the city.~~

~~10.82.040 Issuance, renewal, suspension, and revocation of license.~~

~~A. The director shall refuse to issue or renew a license if the applicant:~~

- ~~1. Does not meet the requirements in the license application, including failing to meet any requirements established by the director;~~
- ~~2. Intentionally or knowingly makes a false statement as to a material matter in an application for a license;~~
- ~~3. Has been convicted twice within a twelve-month period for a violation of this chapter or has had a license revoked within two years of the date of application; or~~
- ~~4. Is applying for or seeks to renew an annual license under Section 10.82.030 on or after June 1, 2024.~~

~~B. If the director denies a license, the director shall notify the applicant or operator in writing that the application is denied and include in the notice the specific reason or reasons for denial and a statement informing the applicant or operator of the right to appeal the decision, pursuant to the city's Administrative Hearing Procedure, Chapter 2.92 of the city code. The right to appeal specified in this subsection, shall not apply to the denial of any license under Section 10.82.030(F)(4) of this chapter.~~

~~C. The director shall revoke a license if the director determines that the license holder has:~~

- ~~1. Made a false statement as to a material matter in the application;~~
- ~~2. Failed to maintain the insurance required by this chapter;~~

~~3. Operated dockless vehicles in excess of the number authorized by the license; or~~

~~4. Failed to pay a fee required by this chapter.~~

~~D. After revocation of a license, an operator is not eligible for another license for a period of up to two years, depending on the severity of the violation resulting in the revocation, as determined by the director.~~

~~E. Except as otherwise provided by Section 10.82.030(F) of this chapter, any person whose application for a license, or renewal of a license, is denied by the director, or an operator whose license has been revoked or suspended by the director, may file an appeal with the city clerk in accordance with the city's administrative hearing procedure, Chapter 2.92 of the city code.~~

~~10.82.050 Dockless vehicle operations.~~

~~A. Each dockless vehicle permitted under this chapter must clearly display the emblem of the license holder, a unique identification number, and a twenty-four hour phone number for customers and citizens to report safety concerns, make complaints, ask questions, or request a dockless vehicle be relocated.~~

~~B. The fleet manager, or a designated representative, shall be available by the telephone number provided on the application, seven days a week during all hours of operation.~~

~~C. License holders shall not attach any personal property (other than dockless vehicles), fixtures, or structures to the public right-of-way without the separate written permission of the director. Any permission to place items in the public right-of-way must be incorporated into the license.~~

~~D. License holders shall provide the director electronic access to the current list of dockless vehicles available for rent in the city, which includes the unique identification number for each dockless vehicle.~~

~~E. License holders shall educate customers regarding the law applicable to riding, operating, and parking a dockless vehicle. A license holder's application must provide information notifying the user that:~~

~~1. The use of helmets is encouraged for the safety of the drivers;~~

~~2. The legal parking of dockless vehicles;~~

~~3. The legal operation of dockless vehicles, including the duty to yield to pedestrians; and~~

~~4. For motor-assisted scooters and electric bicycles, the areas where riding and parking are prohibited.~~

~~F. Notices of violations or broken or inoperable dockless vehicles:~~

- ~~1. License holders shall have two hours after receiving notice of a violation, from any source, to correct violations for a dockless vehicle being parked in an area prohibited under this chapter; for other violations, the license holder has two hours after receiving notice to correct the violation.~~
- ~~2. License holders are required to lock dockless vehicles reported as broken, from any source, and must remove the dockless vehicle within two hours.~~
- ~~3. After the time for correcting a violation has expired, the city may remove and impound a dockless vehicle that is parked in violation of this chapter or broken. The license holder must pay the city a fee of fifty dollars (\$50.00) to obtain the return of each dockless vehicle impounded.~~

~~G. License holders shall provide the collection and analysis of aggregate data concerning its operations to the city:~~

- ~~1. License holders shall provide a monthly report to the director of the maximum number of permitted dockless vehicles in use by riders at any time in the previous week; and~~
- ~~2. License holders shall provide a monthly report to the director that includes:~~
 - ~~a. The total number of rides the previous month;~~
 - ~~b. The total number of dockless vehicles in service for the previous month;~~
 - ~~c. The average number of rides per dockless vehicle per day;~~
 - ~~d. Anonymized aggregated data taken by the license holder's dockless vehicles in the form of heat maps showing routes, trends, origins, and destinations; and~~
 - ~~e. Anonymized trip data taken by the license holder's dockless vehicles that includes the origin and destination, trip duration, distance, and date and time of trip.~~

~~H. License holders shall provide such other reports as the director may request.~~

~~I. License holders shall adhere to geofencing requirements, as determined and at the discretion of the director.~~

~~10.82.060 Insurance.~~

- ~~A. A license holder shall procure and keep in full force and effect no less than the insurance coverage required by this section through a policy or policies written by insurance company that:~~

- ~~1. Is authorized to do business in the State of Wyoming;~~
 - ~~2. Is acceptable to the city; and~~
 - ~~3. Does not violate the ownership or operational control prohibition described in this section.~~
- ~~B. The insured provisions of the policy must name the city and its officers and employees as additional insureds, and the coverage provisions must provide coverage for any loss or damage that may arise to any person or property by reason of the operation of a dockless vehicle.~~
- ~~C. A license holder shall maintain insurance and provide indemnification in accordance with the indemnification and insurance agreement required by the director and on file with the compliance department and the city clerk. Additionally:~~
- ~~1. If a license holder will utilize motor vehicles in its operations, the business automotive liability insurance must cover owned, hired, and non-owned vehicles, with a combined single limit for bodily injury (including death) and property damage of five hundred thousand dollars (\$500,000.00) per occurrence, and no annual aggregate.~~
 - ~~2. Workers' compensation will be provided in accordance with Wyoming law.~~
- ~~D. Insurance required under this chapter must:~~
- ~~1. Include a cancellation provision in which the insurance company is required to notify the director in writing not fewer than thirty (30) days before cancelling the insurance policy (for a reason other than non-payment) or before making a reduction in coverage;~~
 - ~~2. Include a cancellation provision in which the insurance company is required to notify the director in writing not fewer than ten (10) days before cancelling for non-payment;~~
 - ~~3. Cover all dockless vehicles during the times that the dockless vehicles are deployed or operating in furtherance of the license holder's business;~~
 - ~~4. Include a provision requiring the insurance company to pay every covered claim on a first-dollar basis;~~
 - ~~5. Require notice to the director if the policy is cancelled or if there is a reduction in coverage; and~~
 - ~~6. Comply with all applicable federal, state, and local laws.~~
- ~~E. No person who has a twenty (20) percent or greater ownership interest in the license holder may have an interest in the insurance company.~~

~~F. A license holder may not be self-insured.~~

~~G. Any insurance policy required by this chapter must be on file with and approved by the city prior to the issuance of a license, must remain in effect during the term of the license.~~

~~10.82.070—Enforcement.~~

~~A. The responsibility of enforcement of this chapter shall be shared by the police department, city clerk, compliance department, and the planning and development department, as applicable.~~

~~B. Upon observing a violation of this chapter, the director shall take necessary action to ensure effective regulation of dockless vehicles.~~

~~C. The director may, with or without notice, inspect any dockless vehicle operating under this chapter to determine whether the dockless vehicle complies with this chapter and other applicable laws.~~

~~10.82.080—Criminal offenses.~~

~~A. A person commits an offense if, within the city, the person operates or causes or permits the operation of a dockless vehicle service without a valid license issued under this chapter.~~

~~B. A person commits an offense if the person violates or attempts to violate a provision of this chapter.~~

~~C. A culpable mental state is not required for the commission of an offense under this chapter. A separate offense is committed each day in which an offense occurs.~~

~~D. Prosecution for an offense under this chapter does not prevent the use of other enforcement remedies or procedures applicable to the person charged with the conduct or involved in the offense.~~

~~E. Any person who violates any of the provisions of this chapter shall be guilty of a misdemeanor and upon adjudication or conviction thereof shall be fined in an amount not to exceed seven hundred fifty dollars (\$750.00) and costs or imprisonment in jail for a period not to exceed six months, or both, pursuant to Section 2.40.030 of the city code.~~

Section 4. Upon the effective date of this ordinance as specified by Section 6, the city clerk shall not renew the dockless vehicle license held by any person. Any person holding a dockless vehicle license on the effective date of this ordinance shall have not more than forty (40) days after the expiration date of the person's dockless vehicle license to remove any and all property associated with the person's operation of a dockless vehicle in the city of Cheyenne. Any property remaining after the forty (40) day period provided in this section shall be deemed abandoned and the city may dispose of the property in accordance with state and local laws.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle